TERMS OF BUSINESS FOR CLIENTS

Talent Placement & Support

Talent Placement & Support ("TPS") is a sole trader business based in Northern Ireland. TPS is not currently registered for VAT.

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PART A – GENERAL

1. Who these terms are between

1.1 These terms are between Talent Placement & Support ("**TPS**", "**we**", "**us**") and the business that asks us to find or supply staff ("**the Client**", "**you**").

1.2 In these terms, "**the Client**" includes any company in the same group as the Client, and any business run by the same directors or owners. It also includes any business the Client passes a Candidate's details to.

1.3 For permanent placements, TPS acts as an **employment agency**. For temporary and contract workers, TPS acts as an **employment business**. Both terms have the meaning given in the Employment (Miscellaneous Provisions) (Northern Ireland) Order 1981.

2. Meaning of key words

- **Candidate** – a person TPS introduces to the Client for a permanent role.
- **Temporary Worker** – a person TPS supplies to work for the Client on a temporary or contract basis. TPS, or a payroll provider TPS uses, employs or engages them.
- **Introduction** – any of the following, which then leads to the person being Engaged:
  - TPS giving the Client a CV or other details that identify a person
  - the Client interviewing a person TPS has put forward, in person, by phone or by video
- **Engagement / Engaged** – the Client taking a person on in any way: employment, contract for services, freelance, through another agency, or otherwise. It does not matter whether the work is permanent, fixed-term, full-time or part-time.
- **Introduction Fee** – the fee due under Part B when a Candidate is Engaged.
- **Assignment** – a period during which a Temporary Worker works for the Client.
- **Charges** – the hourly or daily rates the Client pays TPS for a Temporary Worker under Part C.
- **Remuneration** – the gross annual pay of the Engaged person in their first year. It includes the items listed in clause 5.2.
- **Working Day** – Monday to Friday, excluding bank and public holidays in Northern Ireland.

3. When these terms apply

3.1 TPS will send these terms to the Client before providing any service. The Client is treated as having accepted them as soon as the Client does any of the following:

- gives TPS a vacancy to work on
- asks to see or receives a CV
- asks to interview a person TPS has put forward
- accepts the supply of a Temporary Worker
- signs these terms

3.2 These terms replace any terms the Client puts forward, including purchase order terms. The only exception is where an authorised representative of TPS agrees otherwise in writing.

3.3 Any change to these terms must be agreed in writing and signed by an authorised representative of TPS.

4. What the Client agrees to do

4.1 Give TPS accurate details of each role before we start work. This includes:

- job title and duties
- location
- hours
- pay and benefits
- start date
- any qualifications, licences, checks or experience required by law or by a professional body

4.2 Tell TPS in writing, before arranging an interview, if the role details change.

4.3 Tell TPS in writing within 3 Working Days of receiving a person's details if the Client already has that person's details from another source. If the Client does not, the Introduction is treated as made by TPS.

4.4 Give TPS feedback on CVs and interviews within a reasonable time, so Candidates are kept informed.

4.5 Pay at least the National Minimum Wage / National Living Wage for the role, and comply with employment, health and safety and equality law.

4.6 Not discriminate against any person TPS introduces or supplies on any ground prohibited by law.

PART B – PERMANENT RECRUITMENT

5. Introduction Fee

5.1 If the Client Engages a Candidate, the Client must pay TPS an Introduction Fee. The fee is due whether the role is the one first discussed or a different one.

5.2 The Introduction Fee depends on the package agreed before TPS starts work on the vacancy. If no package is agreed, Package 1 applies. The package cannot be changed once TPS has started work on the vacancy.

Package	Fee	What is included
Package 1 – Standard	12% of Remuneration	Advertising the role, online searches and matching from the TPS database. Rebate as in clause 8 (Package 1).
Package 2 – Plus	15% of Remuneration	Everything in Package 1, plus extra marketing. Guarantee as in clause 8 (Packages 2 and 3).
Package 3 – Senior / confidential	17% of Remuneration, plus a non-refundable £500 engagement fee paid before work starts	For senior or confidential roles that need headhunting. Guarantee as in clause 8 (Packages 2 and 3).

5.3 Remuneration means the basic annual salary. If service charge, tips or similar payments come to more than 20% of the basic salary, Remuneration means the whole package including those payments.

5.4 For hourly-paid roles, the annual figure is worked out as the hourly rate × 48 hours × 52 weeks.

5.5 A minimum fee of £3,000 (plus VAT where applicable) applies, including for part-time roles.

5.6 If the Client does not tell TPS the true Remuneration, TPS may charge the fee on a reasonable estimate of the market rate for the role.

6. When the Introduction Fee is due

6.1 TPS will send an invoice on the Candidate's start date. If the start date is more than 8 weeks after the offer is accepted, TPS will send the invoice when the offer is accepted instead.

6.2 The invoice must be paid within 14 days of the invoice date.

6.3 The Client must tell TPS straight away when an offer is accepted, and confirm the start date and Remuneration in writing.

7. Introductions that lead to an Engagement later

7.1 An Introduction Fee is due if the Client Engages a Candidate within 12 months of the Introduction. This applies whether the Engagement is direct or through a third party.

7.2 An Introduction Fee is also due if the Client passes a Candidate's details to another business, and that business Engages the Candidate within the same period. The Client is responsible for paying that fee.

8. Rebate / guarantee if a Candidate leaves

8.1 If a Candidate leaves during the guarantee period, TPS will give a refund or a free replacement, depending on the package agreed under clause 5.2:

Week the Candidate leaves	Package 1	Packages 2 and 3
Weeks 1–10	Refund of 100% in week 1, reducing by 10% each week to 10% in week 10	One free replacement
Weeks 11–12	No refund	One free replacement
Weeks 13–16	No refund	40% refund
Weeks 17–20	No refund	25% refund

8.2 Package 1 refunds for weeks 1–8 are paid into the Client's bank account within 14 days. Refunds for weeks 9–10 are given as a credit note against the Client's next invoice.

8.3 A free replacement is for the same job title, duties and location, and must be needed within 6 months of the original start date. If the Client would rather have a refund than a replacement, it must say so before TPS starts looking. The refund is then worked out on the Package 1 scale.

8.4 A week counts as complete once the Candidate has started it. Weeks run from Monday.

8.5 The rebate or replacement only applies if all of the following are true:

- the Introduction Fee was paid in full by the due date
- the Client tells TPS in writing within 7 days of the Candidate leaving
- the Candidate did not leave because of redundancy, a restructure, or a change to the role, pay or hours made by the Client
- the Client has not breached its employment duties to the Candidate. For example, the Client has not paid them late or below the agreed rate, made them work hours beyond their contract, or denied them breaks
- the Candidate is not re-Engaged by the Client within 12 months

8.6 Rebates and replacements do not apply to fixed-term, seasonal or interim roles, unless agreed otherwise in writing.

9. Withdrawn offers

9.1 If the Client withdraws an offer after the Candidate has accepted it, the full Introduction Fee is payable.

9.2 If the Candidate withdraws before starting, no Introduction Fee is payable.

PART C – TEMPORARY AND CONTRACT WORKERS

10. How temporary supply works

10.1 TPS supplies Temporary Workers to work under the Client's supervision and direction. TPS, or its payroll provider, pays the Temporary Worker and handles their PAYE, National Insurance, holiday pay, pension auto-enrolment and statutory payments.

10.2 Before each Assignment, TPS will confirm in writing:

- the Temporary Worker's identity and relevant experience and qualifications
- the start date and expected length of the Assignment
- the Charges

10.3 The Temporary Worker is not the Client's employee. The Client must not change their pay, hours or duties directly. Any change goes through TPS.

11. Charges and timesheets

11.1 The Charges are the rates agreed between the Client and TPS for each type of worker, for example chefs, front of house staff, kitchen porters, housekeepers and care workers. TPS will confirm the agreed rates in writing before the Assignment starts.

11.2 Higher rates apply for overtime, night shifts and bank holidays. Higher weekend rates apply to health care workers only. The higher rates form part of the rates agreed under clause 11.1.

11.3 The Client must sign or approve the Temporary Worker's timesheet each week or fortnight, as agreed. If the Client does not, TPS may invoice on the hours the Temporary Worker reports.

11.4 TPS will invoice weekly or fortnightly, as agreed with the Client. Invoices are payable within 14 days.

11.5 TPS may change the Charges if the Temporary Worker's pay must rise by law. Examples include increases to the National Minimum Wage or equal treatment under clause 13. TPS will give the Client reasonable notice of any such change.

12. Client duties during an Assignment

The Client must:

- (a) give the Temporary Worker a proper induction, supervision, and health and safety information, training and equipment
- (b) treat the Temporary Worker as it would its own staff for health and safety purposes, and report any accident to TPS straight away
- (c) not ask the Temporary Worker to do work outside the agreed role, or work that needs a licence or qualification they do not hold
- (d) have suitable insurance in place, including employers' and public liability cover, for work done under its control

13. Agency Workers Regulations (Northern Ireland) 2011

13.1 From day one, the Client must give Temporary Workers:

- access to shared facilities such as a canteen, childcare or transport
- information about job vacancies, on the same basis as its own staff

13.2 After 12 weeks in the same role, Temporary Workers are entitled to the same basic pay and working conditions as if the Client had hired them directly.

13.3 The Client must give TPS, on request and promptly, accurate details of the pay and conditions of comparable staff. The Client must also tell TPS about any earlier Assignments the Temporary Worker has done for the Client through other agencies.

13.4 TPS may increase the Charges to reflect equal treatment under clause 13.2.

14. Unsuitable workers and ending an Assignment

14.1 If the Client reasonably finds a Temporary Worker unsuitable, it must tell TPS in writing or by phone within 4 hours of the start of the Assignment, and give its reasons. TPS will then arrange a replacement Temporary Worker to cover the shift, subject to availability.

14.2 If TPS receives information suggesting a Temporary Worker may be unsuitable, it will tell the Client and act as the 2005 Regulations require. This may include ending the supply.

14.3 Either party may end an Assignment by giving 12 hours' notice. TPS may end an Assignment at once if the Client breaches these terms or the Temporary Worker's safety is at risk.

15. Taking on a Temporary Worker directly (temp-to-perm)

15.1 A transfer fee is payable if, during the **Relevant Period**, the Client does any of the following with a Temporary Worker:

- (a) employs or Engages them directly
- (b) uses them through another agency or employment business
- (c) introduces them to another business that Engages them

15.2 The **Relevant Period** ends on whichever of these dates is later:

- (a) 14 weeks after the first day the Temporary Worker worked for the Client in that Assignment. Any work before a break of more than 42 days is ignored.
- (b) 8 weeks after the last day the Temporary Worker worked for the Client.

15.3 The transfer fee is 10% of the Temporary Worker's agreed first-year gross basic salary in the permanent role, plus VAT where applicable.

15.4 **Extended hire option.** Instead of paying the transfer fee, the Client may tell TPS in writing that it wants an extended hire period of 4 weeks. During that period TPS will supply the Temporary Worker on terms no less favourable than those that applied just before the notice. At the end of the extended hire period, the Client may take the Temporary Worker on without paying a transfer fee.

15.5 If TPS cannot supply the Temporary Worker for the whole extended hire period, the transfer fee is not payable. This does not apply if the failure was in no way TPS's fault.

15.6 No transfer fee is payable if the Engagement starts after the end of the Relevant Period.

PART D – GENERAL TERMS

16. Payment, VAT and late payment

16.1 TPS is not currently registered for VAT, so no VAT is charged at present. If TPS becomes registered for VAT, it will tell the Client in writing and add VAT at the current rate to invoices from its registration date.

16.2 If an invoice is paid late, TPS may claim interest and fixed compensation under the Late Payment of Commercial Debts (Interest) Act 1998. Interest is charged at 8% a year above the Bank of England base rate. TPS may also claim reasonable recovery costs.

16.3 The Client may not withhold or set off payment against any claim it has against TPS.

16.4 Any rebate under clause 8 is only available if the invoice was paid on time.

17. Checks and references

17.1 TPS takes reasonable steps to confirm a person's identity and that they have the experience, training and qualifications the Client says it needs. TPS also checks that they are willing to do the work.

17.2 For **permanent** Candidates, the Client is the employer and must carry out its own right-to-work check before the Candidate starts. The Client must also take up any references, DBS/AccessNI checks or other checks it needs.

17.3 For **Temporary Workers**, TPS carries out the right-to-work check unless agreed otherwise in writing.

17.4 TPS cannot guarantee that references will be returned. It can only contact a person's current employer with that person's consent.

18. Confidentiality and data protection

18.1 Information about Candidates and Temporary Workers is confidential. The Client may use it only to consider them for the role. The Client must not pass it to anyone else without TPS's written consent.

18.2 Both parties must comply with UK GDPR and the Data Protection Act 2018. The Client must keep personal data secure, and delete it once it no longer needs it for the recruitment process.

18.3 The Client must not contact a person's current or past employers for a reference without that person's consent.

18.4 TPS's privacy notice explains how TPS handles personal data. A copy is available from enquiries@talentplacementsupport.com and will be published on the TPS website when it launches.

19. Liability

19.1 TPS takes reasonable care in finding and supplying suitable people. However, the Client is responsible for deciding whether a person is suitable to employ or use.

19.2 TPS is not liable for any loss, damage, cost or delay the Client suffers because of:

- a person TPS introduces or supplies, including their conduct, negligence or dishonesty
- a person not attending, not accepting a role, or leaving
- TPS being unable to introduce or supply anyone

19.3 Nothing in these terms limits liability for death or personal injury caused by negligence, for fraud, or for anything else that cannot be limited by law.

19.4 The Client will cover TPS for any loss TPS suffers because the Client breaches these terms or the law. This includes health and safety failures, discrimination, and breaches of the Agency Workers Regulations.

20. Advertising

20.1 TPS may advertise the Client's vacancies on its website, on job boards and on social media without naming the Client. The exception is where the Client asks in writing for a role to be kept confidential.

21. Other terms

21.1 These terms, together with any Assignment confirmation, form the whole agreement between TPS and the Client about the services.

21.2 If any part of these terms is found to be unenforceable, the rest still applies.

21.3 A delay in enforcing a right does not mean TPS has given up that right.

21.4 TPS keeps records of its services as required by law.

22. Governing law

22.1 These terms are governed by the law of **Northern Ireland**. The courts of Northern Ireland have exclusive jurisdiction.

Signed on behalf of the Client

Name	
Position	
Company (legal name)	
Company number	
Signature	
Date	

Signed on behalf of Talent Placement & Support

Name	Jarred Morinte
Position	Executive Business Manager & Contracts
Business name	Talent Placement & Support (TPS), sole trader
UTR number	1840441205
Signature	
Date	